

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 24, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Johnson moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 10, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell Chevrolet) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Mayor Orr opened a public hearing to receive comments and input for the City of Cheyenne’s Annual Action Plan Fiscal Year 2017-2018 prepared by the Cheyenne Housing and Community Development Office. Deanne Widauf, Housing and Community Development Office, provided a brief overview of the history and purpose of the Community Development Block Grant program. She advised the proposed plan is consistent with the 5 year Comprehensive Consolidated Plan and the anticipated allocation funding amount is \$397,441 with \$1,000 in program income and \$204,071.00 in recaptured funding. Ms. Widauf explained the grant application process, public notifications and opportunities for input, and role of the Advisory Council in reviewing and recommending projects to be funded. She stated eight projects are proposed under the categories of public service and general service projects, and reviewed the projects and funding amounts as recommended by the Advisory Council as well as the funding amount for program administration. There being no further comments and input, and purpose of the hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 2nd READING – An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning

Map, of the Unified Development Code, changing the zoning classification from NR-2 Neighborhood Residential – Medium Density to NR-3 Neighborhood Residential – High Density for Lots 1-40, Block 1, Shiraz Enclave, City of Cheyenne, Laramie County, Wyoming (located east of and adjacent to Snyder Ave., south of W. Jefferson Road), to be known as Grand Mesa. Reporting for Public Services Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE – 2nd READING - An Ordinance annexing to the City of Cheyenne, Wyoming a parcel of land situate in the NW¼ of Section 21, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located northwest of the intersection of Point Bluff and Crane Bluff). Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body with the exception of Dr. Rinne voting “no”.

ORDINANCE – 2nd READING - An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from LR – Low Density Residential (County) to MR Medium-Density Residential for a parcel of land situate in the NW¼ of Section 21, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located northwest of the intersection of Point Bluff and Crane Bluff). Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting "yes" -- all members of the governing body with the exception of Dr. Rinne voting “no”.

ORDINANCE -- 2nd READING – An Ordinance creating Sections 8.60.181, Notice to Lienholder, and 8.60.182, Junk Vehicle Impoundment-Transfer of Title to the City, of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Anthony Vibbard spoke in opposition of the ordinance, expressing private property rights concerns. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson voting “no”.

ORDINANCE – 2nd READING – An Ordinance Amending Section 2.29.010, Purpose-Authority-General Provisions, of Chapter 2.29, Community Service Officers, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Captain Nathan Buseck, Police Department, noted a clerical correction should be made in the second sentence in paragraph C regarding the word “violations”. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE – 1st READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule -- referred to Finance Committee. (Sponsor - Mr. Luna)

ORDINANCE – 1st READING – Amending various sections of Chapter 5.52, Massage Establishments, within Title 5, Business Licenses and Regulations, of the Cheyenne City Code - referred to Finance Committee. (Sponsors – Mr. Luna and Mr. Laybourn)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Waterford Square 3rd Filing, a replat of Lots 28 & 29, Block 7, Lots 1 & 31, Block 5 and a portion of Tray More Boulevard and adjacent alleys, Waterford Square, City of Cheyenne, Laramie County, Wyoming (located south of the intersection of Tray More Boulevard and Waterford Boulevard). Motion (per Consent Agenda) carried (adopted with revised Final Plat map). (#5843)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Waterford Square 4th Filing, a replat of all of Block 8 (Lots 1-9 inclusive), Waterford Square, City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Avenue C-4 and Turk Court). Motion (per Consent Agenda) carried (adopted with revised Final Plat map). (#5844)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Swan Ranch Rail Park Tenth Filing, a replat of Lots 1, 2 and 3, Block 2 of Swan Ranch Rail Park Second Filing, being situated in a portion of the E½ of Section 33, Township 13 North, Range 67 West of the 6th Principal Meridian, Laramie County, Wyoming (located at the southwest corner of the intersection of Berwick and Trumpeter Drives). Motion (per Consent Agenda) carried (adopted with revised Final Plat map). (#5845)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Western Hills 15th Filing, a replat of all of Lots 9, 10, 11, 12 and 13, Block 40, Western Hills, 10th Filing Replat, City of Cheyenne, Laramie County, Wyoming (located between Silver Sage Avenue, Ranger Drive and Dogwood Avenue). Motion (per Consent Agenda) carried (adopted with revised Final Plat map). (#5846)

RESOLUTION - Acknowledging receipt of the City of Cheyenne Capital Improvement Plan dated March 17, 2017. Reporting for Finance Committee, Mr. Luna moved to adopt, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson voting "no". (#5847)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2017 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#5848)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Grand Mesa, a replat of Lots 1-40, Block 1 and Parisa Court R.O.W. of Shiraz Enclave, City of Cheyenne, Laramie County, Wyoming (located east of and adjacent to Snyder Ave., south of W. Jefferson Road) -- referred to Public Services Committee. (Sponsor - Mr. Roybal)

[CA] RESOLUTION – Adopting the City of Cheyenne Annual Action Plan 2017-2018 prepared by the Cheyenne Housing and Community Development Office -- referred to Finance Committee. (Sponsor – Mr. Luna)

Preliminary Plat for The Bluffs 11th Filing, a parcel of land situated in a portion of the NW¼ of Section 21, T.14N., R.66W., of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Point Bluff and Crane Bluff). Mr. Roybal moved to acknowledge the Planning Commission's recommendation to approve with the revised Final Plat map and staff condition #3, seconded by Mr. Johnson. Motion carried. Voting "yes" - all members of the governing body with the exception of Dr. Rinne voting "no".

[CA] Agreement between the City of Cheyenne and the Wyoming Tribune Eagle for the Fridays on the Plaza summer concert series. Motion (per Consent Agenda) carried. (#6645)

[CA] 2017-2018 Collective Labor Agreement between the City of Cheyenne, and the Cheyenne Firefighters Local Union No. 279, International Association of Firefighters. Motion (per Consent Agenda) carried. (#6646)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District #1 to provide transportation for the Summer Rec Camp Program. Motion (per Consent Agenda) carried. (#6647)

[CA] Contract between the City of Cheyenne and Goat Green. LLC for vegetation management along Dry Creek. (2015-2018 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #E-19-17 for furnishing 20 new police vehicles with equipment installed for the Police Department (2011-2014 and 2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (approved bid submitted by Spradley Barr Motors, Cheyenne, WY, in an amount not to exceed \$835,895.00). (#6648)

Consideration of Bid #S-7-17 for a contract between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, for the Capitol Basin 26th Street Interceptor Storm Sewer Project. Kelly Hafner, BenchMark Engineers, outlined benefits and merits of the project, noting the project is fully funded, and reviewed other affiliated floodway mitigation projects. He advised the basis of the project's design is to optimize the volume of flood water runoff, and that expansion is planned, contingent upon funding, to continue the project eastward into the Capitol Basin area. Mr. Hafner discussed the need to update the Capitol Basin Master Plan and indicated the project will assist with flood control measures. Nancy Loomis, building owner in the project area, discussed flooding conditions affecting her business property; the need to update the master plan; water features and run-off contamination, and commented in support of the project. Mr. Luna moved to approve in an amount not to exceed \$3,412,541.87, seconded by Mr. Johnson. The following topics were included in discussion on the item: Need to begin planning to proceed with next project phase to address flooding issues near the Capitol and Herschler buildings; wetlands treatment of stormwater runoff; revising the current master plan; funding concerns for future construction; alleviating flooding along the Snyder, O'Neil, Capitol floodplain areas and downtown; changes in scope of work relative to EDA grant funding; cost benefit analysis; extension of grant time frame, and postponement of the item to allow time for BenchMark to further evaluate elements involved in the project. Upon inquiry, Mr. Hafner provided his professional background qualifications and experience and responded to queries pertaining to project design; funding time frame; flood impacted areas; correlation of the 26th

Street Project with the Civic Center Commons Project and recently completed Snyder/19th Street Project, and cost benefit analysis. Upon inquiry, Ms. Loomis, commented on water quality features near 23rd Street and the need to include wetlands when updating the master plan. Sam Berta, City Engineer's office, provided information on the change in scope of work for the project relative to the EDA grant; EDA's awareness of the change in the scope of work; grant time frame, and time frame involving the bid submitted by the contractor. Scott Larson, BenchMark Engineers, explained initially the project was to extend to Carey Avenue, however, funding was not sufficient to extend the project that distance so the improvements will stop at O'Neil Avenue for this phase of the project. Sylvia Hackl, City Attorney, reviewed written communications by the City to EDA involving the change in scope of work. Mr. Shanor moved to postpone the item to May 8, 2017, seconded by Mr. Roybal. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson and Mayor Orr voting "no".

[CA] Consideration of Bid #S-11-17 for a contract between the City of Cheyenne, 1% Construction Division, and Simon Contractors, Cheyenne, WY, for the 2017 City Overlay, Part 1 Project -- referred to Finance Committee.

[CA] Contract Modification No. 7 to Contract No. 6219 between the City of Cheyenne, Parks and Recreation Department, and RECCO, Inc., d/b/a Five-R Co., for the Cheyenne Botanic Gardens Project to increase the guaranteed maximum price. Motion (per Consent Agenda) carried (approved in an amount not to exceed \$120,239.08). (#6219)

Amendment No. 2 to Contract No. 4989 between the City of Cheyenne and Cheyenne Pipeline LLC for a renewal term to allow limited use of the public right-of-way for petroleum pipeline purposes and setting a fee. Mr. Luna moved to approve, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson voting "no".

[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Evergreen Restaurant LLC #5011, d/b/a Outback Steakhouse #5011, 1626 Fleischli Parkway, Cheyenne, Wyoming (License currently held by Outback Steakhouse of Florida, LLC, d/b/a Outback Steakhouse, 1626 Fleischli Parkway, Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

[CA] Retail liquor license transfer of ownership application filed with the City Clerk's Office for Deep South, LLC, d/b/a Redwood Lounge, 2105 East Lincolnway, Cheyenne, Wyoming (License currently held by High Plains Entertainment, Inc., d/b/a Redwood Lounge and Package Liquor, 2105 East Lincolnway, Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Wing Shack Enterprises, Inc., d/b/a Wing Shack, 1439 Stillwater Avenue, Units 1 and 2, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the June 2, 2017 Wyoming Association of Municipalities Membership Business Meeting in Gillette, Wyoming -- referred to Finance Committee.

Announcement was made of a Public Hearing to be held May 8, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comment on a proposed sale of real property owned by the City of Cheyenne, located at 206 West Lincolnway, Cheyenne, Wyoming, legally described as the East 22 feet of Lot 7, Block 390, Original City, consisting of approximately 2,904 sq. ft. and having estimated appraised value of \$70,000.00, to Cheyenne-Laramie County Corporation for Economic Development (Cheyenne LEADS), a Wyoming nonprofit, for economic development purposes.

Announcement was made of a Public Hearing to be held May 8, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comment regarding the intent of the City of Cheyenne to submit an application to the Wyoming Business Council's Business Ready Community, Community Readiness Grant Program to assist in funding the Christensen Railroad Overpass and Corridor Project.

Announcement was made of a Public Hearing to be held May 8, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a bar & grill liquor license application filed with the City's Clerk's Office for Paramount Café, LLC d/b/a Paramount Café, 1607 Capitol Avenue, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held May 8, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk's Office for Tyn-Tyn Enterprises, LLC d/b/a Tasty Bones BBQ & Bakery, 1719 Central Avenue, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held May 8, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk's Office for Nagle Warren Mansion, LLC d/b/a Nagle Warren Mansion LLC, 222 East 17th Street, Cheyenne, Wyoming.

Announcement was made of the appointments of Thomas Smith and Aaron Bentley to the Housing and Community Development Advisory Board and Judith Myers to the Downtown Development Authority Board, to be confirmed May 8, 2017.

Under other business:

Upon inquiry, Carol Intlekofer, City Clerk, explained that agenda item #7(a) (Public Meeting for the Annual Action Plan) has an accompanying resolution that was introduced on the agenda and referred to Finance Committee.

Mayor Orr submitted a written memo to Council members and read the memo, which pertained to her decision to refrain from signing Ordinance #4170 (Ordinance creating the Civic

Center Commons Project Oversight Team approved at the April 10, 2017 Council meeting), noting the ordinance will go into effect without her signature. Immediately following adjournment of the meeting, and pursuant to request, Mayor Orr reconvened the meeting to allow for Council comment on the memo. Sylvia Hackl, City Attorney, explained that city code requires written notification by the Mayor if an ordinance is to become effective without their signature.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:33 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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